

Opulent Infra Developers (Pvt.) Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 April 2022 · Writ - C No. 7236 of 2022 · **Supply continued on deposit; clause 4.9 vires left open**

HEADNOTE

Interim order on a developer's challenge to the U.P. Electricity Supply Code (13th Amendment), 2018, amending clause 4.9 so as to require conversion of an existing single-point connection in a multi-storied building to multiple points. Vires not examined. On deposit of Rs 49,43,421 with respondent no. 5 within a week, supply to continue, subject to regular payment of bills and to flat owners being charged only the applicable tariff. Counter-affidavit in three weeks; list in the week commencing 9 May 2022.

FACTUAL SUMMARY

Opulent Infra Developers was sanctioned a 2200 KVA load on 3 November 2016, releasable on deposit of Rs 49,43,421. The sum was adjusted against dues payable to its sister concern, Hi Lead Infotech, until an audit objection held the adjustment impermissible. Notices then demanded a fresh deposit so the connection could be released, and a later notice warned that supply would stop unless the connection was regularized. The developer said the multi-storied building had already been wired for that single-point sanction.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

Interim continuation of single-point supply pending challenge to the 2018 multi-point amendment

HOLDING

The writ challenges the U.P. Electricity Supply Code (13th Amendment), 2018 dated 10 August 2018, in clause 4.9, so far as it requires conversion of an existing single-point connection to a multiple-point connection in multi-storied buildings. The Court did not decide that challenge. It allowed three weeks for a counter-affidavit and listed the matter in the week commencing 9 May 2022. In the meantime, on the petitioner depositing Rs 49,43,421 with respondent no. 5 within a week, electricity supply is to continue, subject to regular payment of electricity bills and to the petitioner charging flat owners only as per the applicable tariff and not a higher amount. ¶ 11.4.2022

PRINCIPLE TAGS

clause-4.9-single-point-to-multipoint

The petitioner questioned the 2018 amendment of clause 4.9 requiring conversion of an existing single-point connection in a multi-storied building to multiple points, the building having already been wired for a single point. The Court recorded that challenge, and the licensee's explanation that the amendment targets builders charging flat owners above the applicable tariff, but it construed neither clause 4.9 nor the amendment. Continuation of supply was only an interim direction, conditioned on deposit of the outstanding system charges, regular payment, and charging flat owners the applicable tariff alone. ¶ 11.4.2022

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE U.P. ELECTRICITY SUPPLY CODE (13TH AMENDMENT), 2018, AMENDING CLAUSE 4.9 ON CONVERSION OF AN EXISTING SINGLE-POINT CONNECTION TO MULTIPLE POINTS IN MULTI-STORIED BUILDINGS

Counsel stated that identical challenges were pending and that interim orders were operating in them. Three weeks allowed for a counter-affidavit; listed in the week commencing 9 May 2022. ¶ 11.4.2022

NOT DECIDED — WHETHER THE SYSTEM CHARGES OF RS 49,43,421 COULD LAWFULLY BE ADJUSTED AGAINST SUMS PAYABLE TO THE SISTER CONCERN HI LEAD INFOTECH (PVT.) LTD.

Not adjudicated. Continuation of supply was conditioned on deposit of that sum within a week. ¶ 11.4.2022

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.